

****Deliberation SAN-2023-016 of November 9, 2023****

****National Commission for Information Technology and Freedoms****

****Nature of the deliberation: Sanction****

****Legal status: In force****

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Deliberation of the restricted formation No. SAN-2023-016 of November 9, 2023, concerning the Ministry of Transformation and Public Service and the Ministry of Economy, Finance, and Industrial and Digital Sovereignty.

The National Commission for Information Technology and Freedoms, convened in its restricted formation composed of Mr. Alexandre LINDEN, President, Mr. Philippe-Pierre CABOURDIN, Vice-President, Ms. Christine MAUGÜÉ and Ms. Isabelle LATOURNARIE-WILLEMS, and Mr. Bertrand du MARAIS, members;

****Considering**** the regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of personal data and on the free movement of such data;

****Considering**** Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector;

****Considering**** Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms, particularly its articles 20 and following;

****Considering**** Decree No. 2019-536 of May 29, 2019, amended, taken for the application of Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms;

****Considering**** Deliberation No. 2013-175 of July 4, 2013, adopting the internal regulations of the National Commission for Information Technology and Freedoms;

****Considering**** the decision of the President of the National Commission for Information Technology and Freedoms designating a rapporteur before the restricted formation, dated June 13, 2023;

****Considering**** the report of Ms. Sophie LAMBREMONT, rapporteur commissioner, notified on June 22, 2023:

- to the Ministry of Transformation and Public Service;

- and to the Ministry of Economy, Finance, and Industrial and Digital Sovereignty;

****Considering**** the written observations submitted by the Ministry of Transformation and Public Service on July 20, 2023;

****Considering**** the other documents in the file;

****Present**** at the meeting of the restricted formation on October 5, 2023:

- Ms. Sophie LAMBREMONT, commissioner, heard in her report;

****As representatives of the ministries:****

- Mr. [...] ;

- Mr. [...].

The representatives of the Ministries of Transformation and Public Service and of Economy, Finance, and Industrial and Digital Sovereignty having spoken last;

The restricted formation adopted the following decision:

****I. Facts and Procedure****

1. The National Commission for Information Technology and Freedoms (hereinafter "the CNIL" or "the Commission") was seized of 1590 complaints regarding the receipt on January 26, 2023, of an email sent from the email address "ne-pas-repondre@dgfi.finances.gouv.fr" with the subject "Pension Reform: Message from Stanislas Guerini to Public Service Agents." The email contained a link to a video lasting 6 minutes and 36 seconds titled "Pension Reform: Message from Stanislas Guerini to Public Service Agents," in which the Minister of Transformation and Public Service spoke.

2. The complaints targeted the Ministry of Economy, Finance, and Industrial and Digital Sovereignty (hereinafter "the Ministry of Economy") and the Ministry of Transformation and Public Service. In general, the complainants described the email they received as "political communication" and criticized

the use by the General Directorate of Public Finances (DGFIP) of their personal data for sending this email by the Ministry of Transformation and Public Service. Furthermore, some complainants claimed to have received the email even though they were no longer public agents.

3. By email from

27 January 2023, the services of the Commission questioned the Data Protection Officer of the two ministries (hereinafter "the DPO") on the following points: the applicable legal basis, the origin of the data used to send the email, the recipients of the email, the number of individuals concerned by the processing, the identity of the data controller(s), the purposes of the processing, any prior information that may have been provided to facilitate the exercise of rights, and any evidence justifying the legality of the processing. Two reminder emails were sent by the CNIL to the DPO on 30 January and 1 February 2023.

4. On 2 February 2023, the DPO responded, indicating in particular that the email had been sent to 2,346,303 individuals and specifying that this number corresponds to all active agents, both permanent and non-permanent, registered in the secure digital space for public agents (ENSAP).

5. By email dated 14 February 2023, the CNIL services requested additional information from the DPO, who responded on 17 February 2023 by attaching a copy of the email exchanges between the DGFIP and the General Directorate of Administration and Public Service (DGAFP) that preceded the sending of the disputed email to the public agents deemed active.

6. For the purpose of examining these elements, the President of the Commission appointed Ms. Sophie LAMBREMON as the rapporteur on the basis of Article 39 of Decree No. 2019-536 of 29 May 2019 as amended on 13 June 2023.

7. Following her examination, the rapporteur notified the ministries on 22 June 2023 of a report detailing the breach of Article 5-1-b) of the General Data Protection Regulation (hereinafter "GDPR") that she considered to be established in this case. This report proposed that the restricted formation issue a reprimand against the ministries. It also proposed that this decision be made public and that it would no longer allow for the identification of the ministries after a period of two years from its publication.

8. On 20 July 2023, the Minister of Transformation and Public Service submitted his observations in response to the sanction report. It was then confirmed to the CNIL services that this response was common to both ministries involved in the procedure.

9. By letter dated 17 August 2023, the rapporteur informed the ministries that the investigation was closed, in accordance with Article 40, III, of the amended Decree No. 2019-536 of 29 May 2019.

10. By letter dated 7 September 2023, the ministries were informed that the case was on the agenda of the restricted formation for 5 October 2023.

11. By email dated 4 October 2023, the ministries were informed of the postponement of the restricted formation session. By letter dated 12 October, they were notified that the date was set for 26 October 2023.

12. The rapporteur and representatives of the ministries were heard during the session of the restricted formation.

II- Reasons for the Decision

A- On the Quality of Joint Data Controllers of the Ministries

13. The data controller is defined, according to Article 4, point 7, of the GDPR, as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing." Under Article 26 of the GDPR: "Where two or more controllers jointly determine the purposes and means of processing, they shall be joint controllers."

14. The processing at issue in this procedure is the use of the email addresses of public agents for the purpose of sending the email dated 26 January 2023 entitled "Pension Reform: Message from

Stanislas Guerini to Public Service Agents," hereinafter "the processing."

15. The rapporteur believes that the Ministry of Transformation and Public Service and the ****Ministry of Economy must be regarded as jointly responsible for the processing in question, considering on the one hand that these are two full-fledged ministries and on the other hand, the elements communicated by the DPO regarding the respective roles of the DGAFP and the DGFIP in sending the disputed email to "State agents."****

16. In defense, the ministries do not contest their joint responsibility.

17. Firstly, the restricted panel notes that it emerges from the email exchanges between the two directorates that the DGAFP requested on January 16, 2023, the State Retirement Service (SRE) of the DGFIP to send a communication to State agents "on the measures included in the pension reform bill currently being prepared," specifying that this would take the form of two distinct messages, "one for active agents, the other for pensioners," before ultimately retracting its request in an email dated January 18, 2023, stating "Ultimately, it is a matter of addressing only the active agents." The same exchanges show that the DGAFP transmitted to the DGFIP the message to be sent to active agents, posing the following questions: "Is it possible to embed the video so that it can be viewed in the email?" and "What statistics could you obtain? We will particularly request the open rate, the video viewing rate, and even the number of clicks on the attached ppt if possible." It thus appears that the DGAFP, wishing to address a communication to active State agents regarding the pension reform, defined the purposes of the processing. Then, by requesting the DGFIP to send the email and providing instructions regarding the content and form of the communication, the DGAFP defined the means of processing. The restricted panel also notes that it emerges from the exchanges between the DGFIP and the DGAFP on January 23, 2023, that the DGFIP conducted technical tests in preparation for sending the email and that it "gave the functional go-ahead for a mass mail send on Thursday, January 26."

18. The restricted panel thus considers that the Ministry of Transformation and Public Service, through the DGAFP, participated in determining the purposes and means of the processing.

19. Secondly, Article 1 of Decree No. 2022-1446 of November 21, 2022, setting the modalities for the processing of ENSAP states that "the General Directorate of Public Finances implements the automated processing of personal data called 'ENSAP'."

20. While Decree No. 2022-842 of June 1, 2022, relating to the powers of the Minister of Transformation and Public Service provides for a functional authority of this minister over the DGFIP, for "issues related to public budgetary and accounting management and the State's real estate policy," it results from the DPO's writings that the administration believes that the action of the DGFIP in sending this message exceeded this framework and that its action then fell under the authority of the Minister of Economy. The restricted panel also considers that by using the ENSAP file and determining certain means of the processing in question, the Ministry of Economy, through the DGFIP, also determined the purposes and means of the processing.

21. The restricted panel considers, in light of these elements, that the Ministry of Transformation and Public Service and the Ministry of Economy must be regarded as jointly responsible for the processing in question.

****B - On the failure to comply with the obligation to process data in a manner compatible with the purposes for which they were collected in accordance with Article 5, paragraph 1, b) of the GDPR.****

22. Article 5.1.b) of the GDPR states that "Personal data must be: / (...) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes."

incompatible with these purposes; (...) ".23. The reporter notes that the email addresses used in the context of the processing in question are those collected under decree no. 2022-1446 of November 21, 2022, setting out the modalities for the processing of ENSAP, and that they have been processed in a manner incompatible with the purposes

provided for by said decree to send a message related to a political communication.²⁴ In defense, the ministries argue that the SRE, which operates the ENSAP processing within the DGFIP, "ensures the information of nationals of the civil and military state pension scheme, particularly regarding the right to information on pensions," and that it has thus acted within its public interest mission of information. They indicate, however, that they take note of the reactions triggered by the communication in question and that a survey of the contact details of users who have expressed a desire to no longer receive information from ENSAP has been conducted so that they can be excluded from any future communications. Furthermore, an evolution of the ENSAP interface, scheduled for December 2023, will allow users to directly refuse the receipt of informational emails.²⁵ The ministries then contest the qualification of political communication retained by the reporter, asserting in particular that the user had the choice to watch or not watch the video attached to the email, and that "the sending was not intended to promote the reform project, but rather to inform, as an employer, public agents about the specific issues concerning them and the very concrete impact that could result for them." In this regard, the ministries consider that the various topics addressed in the video (such as the consideration of the hardship of so-called active categories or the explanations provided on progressive retirement) as well as the PowerPoint were purely informational, without the format of the speech by the minister himself constituting a characteristic element of political communication, the Minister of Transformation and Public Service being able, as a public employer, to address directly and personally all public agents on all administrative and human resource management issues.²⁶ Firstly, the restricted formation notes that, as indicated by the DPO of the two ministries to the CNIL services, the email addresses used in the context of the processing in question are derived from a contemporary extraction of ENSAP and relate to active agents. The restricted formation recalls that when a processing is framed by a regulatory act, its purposes can only be those authorized by that act.²⁷ According to Article 1 of decree no. 2022-1446 of November 21, 2022, setting out the modalities for the processing of ENSAP, "this processing aims to provide public agents with a secure digital space offering personalized services related to state pensions, payroll, and the elections of staff representatives in the state public service. In this regard, it allows the public agent: 1° To have a tool for exchange and communication with the administration; 2° To have a space for archiving documents related to state pensions (...) and payroll." It follows from these provisions that the processing in question only allows the administration to send emails to public agents informing them that a document is available on the ENSAP platform in order to offer them personalized services.²⁸ Secondly, the restricted formation recalls that automated processing of personal data of public agents whose purpose is limited, by the regulatory act governing them, to administrative communication, cannot be used for political communication (CNIL, FR, September 3, 2020, Sanction, n°SAN 2020-005, published; CNIL, FR, September 3, 2020, Sanction, n°SAN 2020-006, published; CNIL, FR, July 24, 2018, Sanction, n°SAN 2018-007, published). It notes that the email dated January 26, 2023, in question is signed by the Minister of Transformation and Public Service and refers, in particular, to a video containing an official speech from him presenting the pension reform. The restricted formation notes that this video contains - as indicated by the ministries - concrete details on how the pension system would be expected to evolve, as well as the PowerPoint titled "For Our Pensions: A Project of Justice, Balance, and Progress." However, this communication occurs shortly after the Minister's presentation in January 2023 of the proposed reform, and before the adoption of the project by Parliament. The restricted formation also considers that certain terms used and the general content of the message aim to convince of the necessity and validity of the reform: "We need to work longer to preserve our pay-as-you-go pension model"; "Our pay-as-you-go system, to which we are all attached [...] protects the most vulnerable"; the measures are described as "measures of justice, of progress"; finally, the reform "will allow us very concretely, I hope I have demonstrated this to you with some very concrete points, to improve our system without hiding the fact that yes, we are asking for an effort from each of you and for that, I want to thank you." Finally, unlike what is usually done for communications via ENSAP (for information security reasons), the email received by the agents did not invite them to consult a message in ENSAP, but contained the message with a link to a video hosted on a third-party service.

29. Thus, contrary to what the ministries assert, the email signed by the Minister, the format of the video, and the general content of the message do not correspond to a communication between public agents and their administration. While it is permissible for the administration to communicate to its agents all necessary information for the exercise of their mission or related to their status as public agents, it can only do so in compliance with the provisions governing the files it uses. More generally, respect for the principle of purpose implies that the processing established for the needs of public service or the employment of public agents should not be used for political communication purposes with public agents. The restricted formation believes that, in this case, the approach falls under a political communication action by one of the ministers responsible for the said reform.

30. The restricted formation concludes that the ENSAP file has been used for political communication purposes and that the processing in question does not correspond to the purpose provided for by the decree establishing this processing of "communication between the agent and the administration." The use of ENSAP for sending these messages therefore disregards Article 1 of Decree No. 2022-1446 of November 21, 2022, which sets the purposes of the processing.

31. It follows from the above that by using the email addresses of active public agents collected under the ENSAP processing to communicate about the pension reform, the Ministry of Transformation and Public Service and the Ministry of Economy, Finance, and Industrial and Digital Sovereignty, jointly responsible for the processing, have processed the said personal data in a manner incompatible with the purpose of the collection, in violation of Article 5.1.b) of the GDPR.

II. On the corrective measure and its publicity

32. Under III of Article 20 of the amended law of January 6, 1978: "When the data controller or its processor does not comply with the obligations arising from Regulation (EU) 2016/679 of April 27, 2016...

****Article 1****

Pursuant to the provisions of this law, the president of the National Commission for Information Technology and Liberties may also, if necessary after having sent the warning provided for in I of this article or, if applicable, in addition to a formal notice provided for in II, refer the restricted formation of the commission with a view to the pronouncement, after adversarial proceedings, of one or more of the following measures:

1° A reprimand; [...]

****Article 33****

By virtue of 7° of III of Article 20 of the amended law of January 6, 1978, in cases where the processing of personal data is carried out by the State, an administrative fine cannot be imposed.

****Article 34****

The rapporteur proposes to the restricted formation that a reprimand be issued against the Ministry of Transformation and Public Service and the Ministry of Economy, Finance, and Industrial and Digital Sovereignty. She also proposes that this decision be made public.

****Article 35****

The ministries contest the existence of a breach.

****Article 36****

The restricted formation considers that, in this case, the breach committed justifies the issuance of a reprimand against the ministries for the following reasons.

****Article 37****

The restricted formation notes the particularly high number of affected individuals, with the email addresses of 2,346,303 persons having been used to send them this communication.

****Article 38****

In view of the nature of the joint data controllers who hold public authority prerogatives, the restricted

formation deems it necessary to raise awareness among the ministries regarding the use of personal data held by the administration in the context of its missions, and whose processing must comply with the applicable legal and regulatory framework.

****Article 39****

Finally, and for the same reasons, the restricted formation considers it necessary for its decision to be made public. It notes, in this regard, that the public has demonstrated, over the past few months, a strong interest in issues related to the processing of its personal data by the State, as evidenced by the unprecedented number of complaints received following this communication.

****FOR THESE REASONS****

The restricted formation of the CNIL, after deliberation, decides to:

- Pronounce, in light of the breach constituted under Article 5-1-b) of Regulation (EU) No. 2016/679 of April 27, 2016, relating to the protection of personal data:
 - a reprimand against the Ministry of Transformation and Public Service;
 - a reprimand against the Ministry of Economy, Finance, and Industrial and Digital Sovereignty;
- Make public, on the CNIL website and on the Légifrance website, its deliberation, which will no longer specifically identify the ministries after a period of two years from its publication.

****President Alexandre LINDEN****

This decision is subject to appeal before the Council of State within two months from the date of its notification.